

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

6. NICOLE LONG V. KYLE LONG

24FL0660

On May 15, 2026, Respondent filed a Request for Order (RFO) seeking child and spousal support orders. He did not file an Income and Expense Declaration until July 8, 2026. Both documents were served on July 8th, however Respondent failed to serve the Notice of Tentative Ruling and a blank FL-320, as required. This request is on the heels of the court's child and spousal support orders dated April 30, 2026.

Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on July 29th.

Respondent filed and served a declaration dated July 30th. He filed and served another declaration on August 3rd.

Respondent is requesting a change in child support orders on the basis that one child will have aged out by the time of the hearing. He further argues that updated orders are necessary due to the fact that each party's income has recently changed.

Petitioner agrees that the eldest child has aged out of the support calculation. She further agrees to the use of each party's current income to calculate support. She requests attorney's fees and sanctions in the amount of \$3,000.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Here, Respondent did not file and serve his Income and Expense Declaration until almost two months after filing the RFO. And, once filed, the declaration did not include the requisite supporting documents which were not filed until July 30th and August 3rd. Moreover, it appears that as of the filing of Petitioner's responsive declaration the parties still had yet to meet and confer on the issue of support.

The parties are ordered to appear for the hearing and ordered to bring their proposed Xspouse reports.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING AND ORDERED TO BRING THEIR PROPOSED XSPOUSE REPORTS.